

has done so. In *The Davis*, 10 Wall. 15, this Court held that a salvage lien was enforceable against property belonging to but not in actual possession of the United States, and in this it followed a decision of Judge Story in *United States v. Wilder*, Fed. Cas. No. 16,694. And in *The Fidelity*, Fed. Cas. No. 4,758, Chief Justice Waite said of the ruling of *The Davis*: "Property does not necessarily become a part of the sovereignty because it is owned by the sovereign. To make it so it must be devoted to the public use and must be employed in carrying on the operations of the government."

In the case of *The Navemar*, *supra*, the Spanish Ambassador asserted on behalf of the Spanish Republic that the seized vessel was the property of the Republic, acquired by expropriation from a Spanish National, but the claim of immunity which had not been recognized by our government was rejected by the Court on the ground that the Spanish government was not in possession of the vessel at the time of her arrest.²

The lower federal courts have consistently refused to allow claims of immunity based on title of the claimant

² *The Cristina*, [1938] A. C. 485, in which the immunity was recognized, seems to have proceeded on the ground that the possession taken in behalf of the friendly foreign government was actual. Similarly in *The Arantzazu Mendi*, [1939] A. C. 256, 263, the sovereign was "in fact in possession of the ship." In *The Jupiter*, [1924] P. 236, 241, 244 (cf. *The Jupiter No. 2*, [1925] P. 69; *The Jupiter No. 3*, [1927] P. 122, 125), it appeared that before the suit was brought the master had repudiated the possession and ownership of the plaintiffs and held the vessel for the claimant government. And in *The Porto Alexandre*, [1920] P. 30, 34, the vessel had been requisitioned under the order of the foreign government and on the particular voyage was carrying freight for that government. In *The Annette*; *The Dora*, [1919] P. 105, 111, an alternative ground of decision was that the sovereign had parted with possession. The Court said: "If it is not in possession, the Court interferes with no sovereign right of the government by arresting the vessel, nor does it, by arresting the vessel, compel the government to submit to the jurisdiction or to abandon its possession."